

23NWCV01361 23NWCV01361

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 23NWCV01361 Hearing Date: August 14, 2026 Dept: C

SHAZIA AKMAL vs BMW OF

NORTH AMERICA, LLC, Case No. 23NWCV01361

This lemon law action was filed on May 4, 2023, and is set for trial on September 2, 2026. Defendant BMW of North America moves for terminating sanctions on the grounds that Plaintiff has failed to comply with the court's February 5, 2026, order to produce Plaintiff's expert for deposition on February 27, 2026, and to produce Plaintiff's vehicle for inspection on February 23, 2026. Defendant gave Plaintiff another chance after failing to comply with the court's orders, but Plaintiff then failed to produce the expert file prior to the expert deposition on July 14, 2026, rendering Defendant unable to conduct the deposition. Defendant requests terminating sanctions, exclusion of Plaintiff's expert from trial and/or monetary sanctions in the amount of \$1,995.00. On February 5, 2026, during a hearing on Defendant's ex parte hearing to advance its Motion to Compel the Deposition of Plaintiff's Experts and Motion to Compel Vehicle Inspection, the parties stipulated that the vehicle inspection will occur on February 23, 2026, and the deposition of Plaintiff's expert will occur on February 27, 2026. The parties further stipulated that trial will be continued to 10:00 a.m. on September 2, 2026. No sanctions were imposed. (2/5/26 Minute Order.) Defendant's efforts to reschedule the expert deposition and the vehicle inspection have proved unsuccessful. (Sheehan Decl., ¶¶18- 25.) On July 31, 2026, the Court advanced the motion to today's date and informed that parties that if Plaintiff's expert deposition and vehicle inspection are not completed by August 13, 2026, the Court will consider evidentiary and/or terminating sanctions. In an opposition filed on August 7, 2026, Plaintiff advised the Court that the vehicle inspection occurred on April 22, 2026 and the deposition of Plaintiff's expert, Randy Waitman, occurred on August 6, 2026. (Cohen Decl.,

¶2, 16.) Because Defendant has obtained the discovery it seeks, Defendant's motion for terminating or evidentiary sanctions is DENIED. Defendant's motion for monetary sanctions is GRANTED. Sanctions in the amount of \$1,995.00 is imposed upon Plaintiff and Plaintiff's counsel, jointly and severally, payable within 30 days. The Final Status Conference and Trial remain on calendar for August 19, 2026 and September 2, 2026, respectively. Moving party to give notice.